



April 25, 2025

Representative Javier Mabrey
Chair of the House Judiciary Committee
200 E. Colfax, Rm. 307
Denver, CO 80203

Representative Michael Carter
Vice Chair of the House Judiciary Committee
200 E. Colfax, Rm. 307
Denver, CO 80203

RE: Letter in Opposition to Colorado SB 25-276

Dear Chair Mabrey and Vice Chair Carter:

On behalf of the advertising industry, we write to oppose Colorado SB 25-276.¹ Our organizations support meaningful privacy protections for Coloradans. As described in more detail below, SB 25-276's definition of precise geolocation data veers from the well-established definition in other state privacy laws. Accordingly, we ask you to decline to advance the bill as drafted out of House Judiciary Committee ("Committee") and to consider updates to bring the precise geolocation data definition in line with the majority of states which have passed privacy legislation.

SB 25-276 strays from the majority of states by defining "precise geolocation data" to include "...any data derived from a device and that is used or intended to be used to locate a consumer within a geographic area."² This provision could capture data that provides approximate rather than precise location information, for example, zip code or city information. In addition, this broad provision is confusing when considered alongside the other part of the proposed definition which appears to limit its reach to areas within a radius of 1,850 feet.³ It is unclear which provision would prevail since "...any data derived from a device and that is used or intended to be used to locate a consumer within a geographic area..." could be broader than the limit of information derived within a radius of 1,850 feet. This ambiguity would result in significant compliance challenges and would create uncertainty for both consumers and businesses alike.

The Committee should take steps to harmonize the bill's definition with other state privacy laws. Compliance costs associated with divergent privacy definitions and standards are significant. To make the point: a regulatory impact assessment of the California Consumer Privacy Act of 2018 concluded that the initial compliance costs to California firms would be \$55 billion.⁴ Another recent study found that a consumer data privacy proposal in Florida would have generated a direct initial compliance cost of \$6.2 billion to \$21 billion and ongoing annual compliance costs of \$4.6 billion to \$12.7 billion for the state.⁵ Other studies confirm the staggering costs associated with

¹ Colorado SB 25-276 (2025-2026 Reg. Sess.), located [here](#).

² SB 25-276 § 20, 6-1-1303(17.4)(a)(III). See, e.g., Cal. Civ. Code § 1798.140(w); Tenn. Code Ann. § 47-18-3201(18); Tex. Bus. & Com. Code Ann. § 541.001(21).

³ SB 25-276 § 20, 6-1-1303(17.4).

⁴ See State of California Department of Justice Office of the Attorney General, *Standardized Regulatory Impact Assessment: California Consumer Privacy Act of 2018 Regulations*, 11 (Aug. 2019), located at https://dof.ca.gov/wp-content/uploads/sites/352/Forecasting/Economics/Documents/CCPA_Regulations-SRIA-DOF.pdf.

⁵ See Florida Tax Watch, *Who Knows What? An Independent Analysis of the Potential Effects of Consumer Data Privacy Legislation in Florida*, 2 (Oct. 2021), located at

varying state privacy standards. One report found that state privacy laws could impose out-of-state costs of between \$98 billion and \$112 billion annually, with costs exceeding \$1 trillion dollars over a 10-year period, and with small businesses shouldering a significant portion of the compliance cost burden.⁶ Harmonization with existing privacy laws is essential to create an environment where consumers in Colorado have privacy protections that are consistent with those in other states, while minimizing unnecessary compliance costs for businesses. Colorado should not add to this compliance bill for businesses and should instead opt for an approach to precise geolocation data that is in harmony with already existing state privacy laws.

As the nation's leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for 12 percent of total U.S. gross domestic product ("GDP") in 2020.⁷ By one estimate, over 154,403 jobs in Colorado are related to the ad-subsidized Internet.⁸ We and our members strongly support meaningful privacy protections for consumers. We believe, however, that SB 25-276's definition of precise geolocation data would deviate significantly from what has worked in other states. We therefore respectfully ask the Committee to decline to advance SB 25-276, as currently drafted. Thank you for your consideration of this letter.

Sincerely,

Christopher Oswald
EVP for Law, Ethics & Govt. Relations
Association of National Advertisers
202-296-1883

Alison Pepper
EVP, Government Relations & Sustainability
American Association of Advertising Agencies, 4As
202-355-4564

Clark Rector
Executive VP-Government Affairs
American Advertising Federation
202-898-0089

Lou Mastria
CEO
Digital Advertising Alliance
347-770-0322

CC: Members of the House Judiciary Committee

Mike Signorelli, Venable LLP
Allie Monticollo, Venable LLP
Matthew Stern, Venable LLP

<https://floridataxwatch.org/DesktopModules/EasyDNNNews/DocumentDownload.ashx?portalid=210&moduleid=34407&articleid=19090&documentid=986>.

⁶ Daniel Castro, Luke Dascoli, and Gillian Diebold, *The Looming Cost of a Patchwork of State Privacy Laws* (Jan. 24, 2022), located at <https://itif.org/publications/2022/01/24/looming-cost-patchwork-state-privacy-laws> (finding that small businesses would bear approximately \$20-23 billion of the out-of-state cost burden associated with state privacy law compliance annually).

⁷ John Deighton and Leora Kornfeld, *The Economic Impact of the Market-Making Internet*, INTERACTIVE ADVERTISING BUREAU, 15 (Oct. 18, 2021), located at https://www.iab.com/wp-content/uploads/2021/10/IAB_Economic_Impact_of_the_Market-Making_Internet_Study_2021-10.pdf.

⁸ *Id.* at 123.